

7.	26CV0799	MARY ASTOR SMITHE VS. EDIB ZILDZO ET AL
PRELIMINARY INJUNCTION		

The Notice does not comply with Local Rules 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

On May 4, 2026, Plaintiff, Mary Astor Smithe ("Plaintiff"), filed a Motion for Preliminary Injunction. Plaintiff seeks to enjoin Defendants, Edib Zildzo, Alma Zildzo (aka Alma Trebincevic and Alma Maslic), and Aze Enterprises LLC (dba Crepe Town European Café & Grill) a California Limited Liability Company (collectively "Defendants") from:

1. Selling, transferring, encumbering or dissipating any interest in the real property at 3601 Eagle View Drive, Cameron Park, CA 95682, including any interest held by the Zildzo Family Trust or its trustees Edib Zildzo and Alma Zildzo;
2. Freezing all bank accounts and assets of AZE Enterprises LLC dba Crepe Town European Café & Grill;
3. Approving and ordering immediate recording of the Notice of Pendency of Action previously mailed by Plaintiff; and
4. Waiving any bond requirement pursuant to Code of Civil Procedure §§ 995.240 and 529.2 due to Plaintiff's granted fee waiver.

A Supplemental Request for Tentative Ruling Decision on the Papers was filed by Plaintiff on May 14, 2026.

It is unclear whether Plaintiff's motion and supplemental request have been served. Proofs of Electronic Service were filed on May 14, 2026 and May 18, 2026 indicating "Proof of Electronic Service, Request, and Request to Waive Court Fees" were served. A Proof of Electronic Service was also filed on May 4, 2026, indicating a "Motion in Limine and Proof of Electronic Service" were served. These Proofs of Service do not specify the underlying pleadings were served on Defendants.

There is no opposition on file.

Plaintiff's Motion for Preliminary Injunction is denied without prejudice.

TENTATIVE RULING #7:

PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION IS DENIED WITHOUT PREJUDICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.